

Amendment No. 3 to HB2277

Bulso
Signature of Sponsor

AMEND Senate Bill No. 2403*

House Bill No. 2277

by deleting Sections 6 and 7 and substituting:

SECTION 6. Tennessee Code Annotated, Title 49, Chapter 6, is amended by adding the following as a new part:

49-6-8201. Short title.

This part is known and may be cited as the "Protecting Religious Liberty and Expression in Public Schools Act."

49-6-8202. Findings.

The general assembly finds and determines that:

(1) Nativists were deeply prejudiced against ecclesiastical organizations and especially the Catholic Church;

(2) Nativists gave expression and force to these anti-Catholic animosities by advocating the notion of separation of church and state;

(3) The idea of separation of church and state departs from the religious liberty guaranteed by the Constitution of Tennessee and the religious liberty guaranteed by the United States Constitution by restricting not only government but also religion and by discriminating against churches and other ecclesiastical religion, in contrast to more individualistic spirituality;

(4) Nativists promoted notions of generically "American" liberties, which flattened out the difference between state and federal rights, and which laid a foundation for the supreme court's decisions incorporating the First Amendment's Establishment Clause against the states;

(5) Nativists thereby inculcated the idea that states must conform to the so-called separation of church and state;

(6) Nativists sought to place limits on the election and lobbying speech of churches;

(7) The supreme court of the United States in 1947, in an opinion written by Justice Hugo Black, a former Klansman, incorporated the First Amendment's Establishment Clause against the states and interpreted it to require separation of church and state;

(8) The Establishment Clause decisions of the supreme court of the United States have ever since been infected with discriminatory ideas of separationism;

(9) The decisions of the supreme court of the United States have ever since incorporated the Establishment Clause against the states in ways that suppress state conceptions of disestablishment that are more tolerant and respectful of religious liberty;

(10) The Blaine Amendments that appear in many state constitutions are a product of the nativist, anti-Catholic sentiments that undergirded and propagated the idea of separationism and, moreover, violate the Free Exercise Clause of the United States Constitution, as interpreted by the supreme court's recent decisions in *Espinoza v. Montana Dept. of Revenue*, 591 U.S. 464 (2020), and *Carson v. Makin*, 596 U.S. 767 (2022);

(11) The Establishment Clause of the United States Constitution restricts only laws enacted by congress, and the Fourteenth Amendment of the United States Constitution offers no support for requiring states to comply with the restrictions that the Establishment Clause imposes on congress;

(12) This legislature enjoys the power to extend protection to religious liberty and freedom of expression and to provide redress against deprivations of these liberties; and

(13) This state seeks compliance with the First Amendment and opportunities to bring questions about its meaning before the courts.

49-6-8203. Part definition.

As used in this part, "public school" means a school in this state that serves students in any of the grades kindergarten through twelve (K-12) and that is operated by an LEA, by this state with public funds, or pursuant to a charter agreement, as defined in § 49-13-104.

49-6-8204. Period of prayer.

(a) A public school shall provide its students and employees with an opportunity to participate in a designated period of prayer on each school day in accordance with this section.

(b) A public school shall adopt and implement a policy for purposes of implementing the requirement in subsection (a) that:

(1) Prohibits a student or employee of the public school from participating in the period of prayer unless the employee or the parent or guardian of the student or the student, if the student is eighteen (18) years of age or older, submits to the LEA or public charter school a signed consent form that includes:

(A) An acknowledgment that the student, parent, or employee has the choice of whether to participate in the period of prayer;

(B) A statement that the person has no objection to participating, or the parent's student participating, in or hearing the prayers; and

(C) An agreement to arbitrate any legal claim that arises out of or in any way relates to the adoption of a policy under this section, including

a claim under the Establishment Clause of the First Amendment to the United States Constitution or a related state or federal law;

(2) Prohibits the provision of a prayer over a public address system;

(3) Specifies that a period of prayer shall not be a substitute for instructional time;

(4) Ensures a prayer is not provided in the physical presence of, within the hearing of, or in any other manner that would constitute an injury in fact within the meaning of the United States Constitution or the Constitution of Tennessee to a person who has not consented pursuant to subdivision (b)(1) or who has revoked the person's consent pursuant to subsection (c) and has not submitted a new form of consent pursuant to subdivision (c)(1); and

(5) May require that the period of prayer be provided:

(A) Before regular school hours; and

(B) By any other method recommended by the attorney general and reporter or legal counsel for the district or school.

(c) An employee or parent or guardian of a student or the student, if the student is eighteen (18) years of age or older, may revoke the person's consent provided pursuant to subdivision (b)(1) by informing the appropriate school administrator, as determined by the public school, of the revocation. An employee or student for whom consent is revoked pursuant to this subsection (c):

(1) Shall not participate in the designated period of prayer required pursuant to subsection (a) unless the employee, parent or guardian of the student, or the student, if the student is eighteen (18) years of age or older, submits to the LEA or public charter school a new consent form in accordance with subdivision (b)(1); and

(2) Remains bound by the agreement to arbitrate in subdivision (b)(1)(C).

(d) This section does not prohibit a student or employee of the LEA or public charter school from participating in prayer during a period of the school day that is not designated as a period of prayer under this section.

SECTION 7. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 8. If any provision of this act or its application to any person or circumstance is held invalid, then the invalidity does not affect other provisions or applications of the act that can be given effect without the invalid provision or application, and to that end, the provisions of this act are severable.

SECTION 9. Sections 2, 3, and 6 of this act take effect July 1, 2026, the public welfare requiring it, and apply to the 2026-2027 school year and each school year thereafter. All other sections of this act take effect upon becoming a law, the public welfare requiring it.